

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No.

Crl. Misc. No.13882-B/2014

Waqas Hussain Shah

Versus

The State & another

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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14.10.2014. Malik Asif Mahmood Chohan, Advocate along with the petitioner.

This is fourth pre-arrest bail application on behalf of the petitioner in case F.I.R. No.156 dated 23.04.2014 for offence under Section 365-B, P.P.C., registered at Police Station Jhaal Chakkian, District Sargodha. The first one bearing Crl. Misc. No.8355-B/2014 was dismissed due to non-appearance of the petitioner on 26.06.2014. The second bearing Crl. Misc. No.10368-B/2014 was dismissed for non-prosecution vide order dated 22.09.2014. The third one Crl. Misc. No.12900-B/2014 was again dismissed for non-prosecution on 03.10.2014.

2. On query, the learned counsel for the petitioner contends that the dismissal for non-prosecution of earlier bail applications was on account of the petitioner's living in a remote area.

3. Heard.

4. The petitioner has sought the relief of anticipatory bail the fourth time through the instant application. He is consciously playing hide and seek with the Court which cannot be allowed to continue incessantly. The offence alleged against the petitioner is heinous in nature which falls within the prohibitory clause of Section 497 Cr.P.C.

Had he been serious in seeking relief of pre-arrest bail if he otherwise deserves, he would have been on his toes for his appearance before this Court but he absented himself every time without any plausible reason which amounts to the abuse of process of Court and disentitles him to discretionary relief of bail. Reliance is placed on the judgment reported as Rao Qadeer Khan v. The State (PLD 1981 S.C. 93). Even otherwise, this Court is not convinced on the grounds urged by the learned counsel for the petitioner.

5. For what has been discussed above, I, being concerned and conscious of the increasing trend of misuse of concession of interim pre-arrest bail by the accused persons, am not inclined to allow the petitioner to abuse the process of the Court again as the instant case is the worst example of misuse of relief of interim pre-arrest bail repeatedly extended by this Court to the petitioner. It seems that the petitioner has been using this concession as a device to avoid the process of investigation by obtaining interim bail orders through the supra mentioned successive bail petitions. The instant F.I.R. was registered on 23.04.2014 and the petitioner remained on pre-arrest bail till today with certain gaps between the dismissal of his bail petitions due to non-prosecution and filing of the subsequent petition for the same relief. The conduct of the present petitioner remained the same before the learned Court of first instance which is evident from the order dated 11.06.2014 according to which bail application of the petitioner was dismissed due to non-prosecution as well as non submission of bail bonds by the petitioner which also reflects that the petitioner has never sought the relief of interim pre-arrest bail with clean hands and mind.

6. In this view of the matter, the petitioner is held not entitled to the grant of pre-arrest bail. Hence, this petition is dismissed *in limine*.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING

Judge

Mukhtar